

Conclusion

As such, Defendant Universal's demurrer to the fourth cause of action is **sustained without leave to amend**.

9. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
*HEARING ON MOTION IN RE: STRIKE PLAINTIFFS' FIRST AMENDED COMPLAINT FILED BY
DEFENDANT UNIVERSAL PROTECTION SERVICE, LP
FILED BY: UNIVERSAL PROTECTION SERVICE, LP
TENTATIVE RULING:

Denied as moot. See line 8.

10. 9:00 AM CASE NUMBER: C24-02750
CASE NAME: CURTIS CANNEDY VS. BJ'S RESTAURANT INC.
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: BJ'S RESTAURANT INC.
TENTATIVE RULING:

Before the Court is Defendant BJ's Restaurant & Brewhouse, Inc.'s Demurrer to Plaintiffs' First Amended Complaint.

Defendant BJ's Demurrer is **sustained with partial leave to amend**, as set forth below.

Factual Allegations

This matter pertains to a fatal automobile accident that occurred in the early morning hours of February 10, 2024, involving Plaintiffs' son – Christopher Cannedy. At that time, Andres Hernandez was employed by Defendant BJ's Restaurant, located in Brentwood, California. (¶ 6.) After his shift, Mr. Hernandez engaged in heavy drinking of alcohol behind the restaurant with other BJ's employees. (¶ 7.) He and his fellow employees drank for several hours. (*Ibid.*)

"Miguel," a manager of BJ's, had a policy of permitting employees to drink during their shifts and to drink for up to 30-minutes after their shifts behind the restaurant. (¶ 8.) The 30-minute rule was not enforced. (*Ibid.*) The location of the drinking was such that it would be readily observable by anyone visiting the restaurant, including any corporate representative or officer visiting the restaurant. (¶ 9.) BJ's had a corporate policy that recognized the risks of permitting employees to drink at work or to drink in excess. (¶ 10.)

Defendant Allied provided security to the Beautiful Streets of Brentwood Shopping Center ("Mall") wherein the BJ's restaurant was located. (¶ 13.) Public intoxication is a misdemeanor. (*Ibid.*) The drinking behind the BJ's restaurant was a nearly nightly occurrence. (*Ibid.*) It is alleged that Allied should have been aware of this practice but took no steps to interrupt or prohibit the activity. (*Ibid.*)

On the morning of February 10, Mr. Hernandez left the BJ's restaurant parking lot with a blood alcohol level of 0.165%. (¶ 14.) He proceeded to enter State Route 4 going the wrong way and collided head on with Christopher Cannedy. (*Ibid.*) Both drivers were killed in the accident. (*Ibid.*)

Plaintiffs filed their complaint on October 11, 2024. Defendant Universal filed a demurrer to the Complaint, which was sustained with leave to amend. Thereafter, the Plaintiffs filed the operative First Amended Complaint on July 18, 2025. The FAC alleged three causes of action against BJ's: (1) Respondeat Superior; (2) Negligent Hiring/Supervision; and (3) Unfair Business Practices – B&P 17200 et seq.

BJ's demurrers to each of the three causes of action.

Standard for Demurrer

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.)

Legal conclusions are insufficient. (*Id.* at 1098–99; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.) To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (*C.A. v. William S. Hart Union High School Dist.* (2012) 53 Cal.4th 861, 872.)

Analysis

Respondeat Superior

"Under the theory of respondeat superior, employers are vicariously liable for tortious acts committed by employees during the course and scope of their employment." (*Lobo v. Tamco* (2010) 182 Cal.App.4th 297, 301.) Respondeat superior "liability attaches if the activities 'that cause[d] the employee to become an instrumentality of danger to others,' were undertaken with the employer's permission and were of some benefit to the employer or, in the absence of proof of benefit, the activities constituted a customary incident of employment." (*Purton v. Marriott Internat., Inc.* (2013) 218 Cal.App.4th 499, 509.) "Employee social and recreational activity on the company premises, endorsed with the express or implied permission of the employers, falls within the course of employment if the 'activity was conceivably of some benefit to the employer....'" (*McCarty v. Workman's Comp. Appeals Bd.* (1974) 12 Cal.3d 677, 682.)

The FAC alleges that Mr. Hernandez concluded his shift on February 10, 2024, and left the premises of BJ's restaurant. (¶ 7.) He then met other BJ's employees near the dumpsters, which were "close to the Restaurant," and participated in drinking alcoholic beverages for several hours before driving away and getting into the accident at issue. (*Ibid.*) None of the above activity is alleged to have occurred while Mr. Hernandez was 'on the clock' or on BJ's premises.

As noted above, Mr. Hernandez was off work for several hours before driving home and getting into the subject accident. Under the so-called 'going and coming rule' employers are "generally exempt from liability for tortious acts committed by employees while on their way to and from work because

employees are said to be outside of the course and scope of employment during their daily commute.” (*Moradi v. Marsh USA, Inc.* (2013) 219 Cal.App.4th 886, 894.) “The ‘going and coming’ rule is sometimes ascribed to the theory that the employment relationship is ‘suspended’ from the time the employee leaves [the workplace] until he returns ... or that in commuting he is not rendering service to his employer.” (*Ibid.* citation omitted.)

Plaintiffs argue that BJ’s had an ‘unofficial policy’ which permitted employees to drink during their shifts and for up to 30 minutes afterwards at the dumpsters. This ‘unofficial policy’ was meant to build employee camaraderie, showing employees trust, and improving employee morale. Thus, Plaintiffs argue, even though the drinking and the driving occurred off-the-clock and not on BJ’s property, it is still considered to be during the ‘course of employment.’

Plaintiff cites *Childers v. Shasta Livestock Auction Yard* (1987) 190 Cal.App.3d 792, which notes that several California cases have allowed nonemployee third parties to recover from employers for tortious conduct of employees, where the tortious conduct was a foreseeable risk of the employee’s consumption of alcohol occurring after ordinary working hours but within the scope of employment. (*Id.* at 803 citations omitted.) Plaintiff provides no discussion or analysis of *Childers* or any of the cases cited therein.

Every memorandum of points and authorities “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and **a discussion of the statutes, cases, and textbooks cited in support of the position advanced.**” (Cal. R. Ct. 3.1113 (b).) Rule 3.1113 prevents the “trial court from being cast as a tacit advocate for the moving party’s theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide.” (*Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934.) It is the Plaintiffs’ counsel’s job to explain why the cases they cite are applicable to the instant matter. Merely citing a case without discussion does not aid the Court in its analysis. *Childers* and the cases cited therein are distinguishable from the current matter.

In *Childers*, the Yard’s foreman gave employee Smith the keys to the yard (as Smith would be in charge the next day), and told him to ‘go have a beer,’ which Smith knew to mean to get the beer from the corporate office. (*Id.* at 799.) Smith returned to the Yard and got some six packs of beer from the corporate office and went outside. There, he met employee Abbott who was off work. They both sat and drank the beer, then went into the office to continue drinking hard alcohol with a customer. Several hours later, Abbott drove off to feed his horses, drove off the road, and died.

The court found that the evidence showed the Abbott’s consumption of alcohol on the night of the accident could be deemed to be within the “test of scope of employment, i.e., that the activity was [1] undertaken with Shasta’s permission, [2] was of benefit to Shasta, and [3] was a customary incident of Abbott’s employment.” (*Id.* at 806.) As the court explained:

Yard foreman John Suther’s entrustment of the keys to the auction yard premises, together with his instructions to “Go get a beer,” were sufficient to grant to plaintiff and Smith agency authority to obtain alcohol from the employer’s locked premises. [citations] Evidence on the motion showed Abbott consumed alcohol with the permission of plaintiff and Smith on the evening in question, in line with what had

become a regular Friday night institution at the auction yard, when the three entered the office and drank Shasta's hard liquor with customer Roston. Abbott's consumption of liquor was therefore with the express and implied permission of Shasta and was a customary incident of her employment. Moreover, the evidence showed Shasta routinely furnished alcohol on the premises to customers and employees to encourage good customer relations. The fact that Abbott drank with Shasta's customer Roston is sufficient evidence of benefit to Shasta to defeat a motion for summary judgment. Finally, Abbott's subsequent negligent driving was a clearly foreseeable risk of her consumption of alcohol and, therefore, of Shasta's business enterprise.

Childers cites *Harris v. Trojan Fireworks Co.* (1981) 120 Cal.App.3d 157 in support. In *Harris*, defendant employee (Mr. Barajas) was alleged to have caused an automobile accident resulted in the death of one of the plaintiffs. The allegations were that Trojan Fireworks held a Christmas party for its employees "at which ... the employees were caused to attend and caused to imbibe large quantities of alcoholic beverages." (*Id.* at 159.) Mr. Barajas attended the party, became intoxicated, and attempted to drive home – resulting in the accident.

The Court discussed the 'coming and going rule' and the policies behind exceptions thereto, in finding that there "is sufficient connection between the employment or the employer's Christmas party and the employee's negligent act to justify holding the employer financially responsible for the injuries occasioned by the employee's accident." (*Id.* at 164.) The court noted that it could be inferred that the Christmas party was for the benefit of the employer – as it could be argued that the purpose of the party was to improve relations between the employees. (*Ibid.*)

The court noted that the employer intended Mr. Barajas to attend the holiday party by holding it during work hours and paying him to attend. (*Ibid.*) It also intended him to consume alcohol because it "furnished the alcoholic beverages" and it was alleged that the employer's agents "caused him to imbibe large quantities of alcoholic beverages." (*Ibid.*) Such allegations were deemed sufficient to, if proven, support a jury's determination that Mr. Barajas' attendance at the party and intoxication were within the scope of his employment. (*Id.* at 165.)

Purton v. Marriott Internat., Inc. 218 Cal.App.4th 499 is similar in its ruling. There, Marriott hosted an annual 'thank you' party for its employees. (*Id.* at 503.) While it did not require or pay its employees to attend, it did supply the alcohol for the event. (*Id.* at 503-04.) One of its employees (Mr. Landri) became intoxicated at the party and ultimately drove, causing an accident the killed an individual. The court discussed whether "a reasonable trier of fact could conclude that Landri was acting within the scope of his employment when he became intoxicated at the party." (*Id.* at 509.)

In support of its determination that the respondeat superior could apply the court highlighted the fact that the employer provided the alcohol at the party and sponsored and hosted the party. (*Id.* at 509-510.) It was also an annual event meant to celebrate the employees and celebrate team building. (*Id.*) The evidence showed that at the party "employees had Marriott's express permission to consume beer and wine," and that the implied 2 drink limit was not followed. (*Id.* at 510.) Evidence showed that Marriott managers consumed hard alcohol with employees at the party, thereby undermining

the claim that the party was limited to wine and beer. (*Ibid.*)

Thus, a trier of fact could find that the party and drinking of alcoholic beverages benefited the employer by improving employee morale and furthering employer-employee relations. (*Ibid.*)

A consistent theme from the above is that the employer was explicitly aware of the consumption of alcohol, provided the alcohol, and a purpose of the event at which the alcohol was provided had a work-related benefit – i.e. a business reason for the event. The events were also explicitly approved and/or thrown by the employer.

Here, there are no allegations that Mr. Hernandez was drinking during his shift. Nor are there any allegations that BJ's supplied the alcohol consumed by Mr. Hernandez and the others by the dumpsters after work hours ended. As for BJ's awareness of the drinking, it is alleged that a single manager ("Miguel") at the Brentwood location allowed the above 'unofficial policy.' There are no allegations that "Miguel" or any other BJ's management saw the drinking on the day in question. Nor are there allegations that "Miguel" was at work that day – such that he could have condoned the action. The get together at issue in this case is materially different from those outlined in the cases above. It was an informal meeting of employees **after** they were off the clock and was located **off the premises** of the employer. BJ's is not alleged to have supplied the alcohol nor to have instigated or explicitly approved of the 'informal' after work gathering.

Based on the above, Defendant BJ's demurrer to the first cause of action for respondeat superior is **sustained**.

Negligent Hiring/Supervision

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit." (*Phillips v. TLC Plumbing, Inc.* (2009) 172 Cal.App.4th 1133, 1139.) "Liability for negligent hiring ... is based upon the reasoning that if an enterprise hires individuals with characteristics which might pose a danger **to customers or other employees**, the enterprise should bear the loss caused by the wrongdoing of its incompetent or unfit employees." (*Ibid.* quoting *Mendoza v. City of Los Angeles* (1998) 66 Cal.App.4th 1333, 1339, emphasis added.) "The tort has developed in California factual settings where the plaintiff's injury **occurred in the workplace, or the contract between the plaintiff and the employee was generated by the employment relationship.**" (*Mendoza*, 66 Cal.App.4th at 1339-40, emphasis added.)

"Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.'" (*Phillips*, supra, 172 Cal.App.4th at 1139.) "The principal may be negligent because he has reason to know that the ... agent, because of his qualities, is likely to harm others in view of the work or instrumentalities entrusted to him. If the dangerous quality of the agent causes harm, the principal may be liable under the rule that one initiating conduct having an undue tendency to cause harm is liable therefor." (*Id.* at 1340.)

The FAC alleges that BJ's knew that Mr. Hernandez was a "binge drinker and accordingly unfit to work in a business that served alcohol and allowed its employees to consume alcohol." (¶ 22.) Also, BJ's should have known that Mr. Hernandez's "propensity for binge drinking posed an unreasonable risk

to others including motorists traveling in the vicinity of the Restaurant.” (¶ 23.)

As outlined above, the accident at issue occurred well off the premises of BJ’s restaurant many hours after Mr. Hernandez was off work. There are no allegations that Mr. Hernandez drank while at work, or that his job (which is not identified) put him in contact with alcohol. Nor are there any allegations that his job required him to drive a vehicle for BJ’s. Liability “requires some nexus or causal connection between the principal’s negligence in selecting or controlling an actor, the **actor’s employment or work**, and the harm suffered by the third party.” (*Phillips*, 172 Cal.App.4th at 1140 emphasis added.)

There are no allegations that the accident at issue occurred at BJ’s establishment, or that the accident “was generated by the employment relationship” between Mr. Hernandez and BJ’s. For example, if Mr. Hernandez was hired to be a delivery driver, the fact that he got into an automobile accident with decedent could potentially be tied back to his employment.

Based on the above, Defendant BJ’s demurrer to the second cause of action for negligent hiring/supervision is **sustained**.

Unfair Competition

California’s unfair competition law, as set forth in California Business and Professions Code §17200 *et seq.* (“UCL”) “broadly prohibits ‘an unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.’” (*Puentes v. Wells Fargo Home Mortgage, Inc.* (2008) 160 Cal.App.4th 638, 644-45.) “By proscribing ‘any unlawful’ business practice, ‘section 17200 borrows violations of other laws and treats them as unlawful practices’ that the unfair competition law makes independently actionable.” (*Id.* at 644, *quoting Cel-Tech Communications, Inc. v. Los Angeles Cellular Telephone Co.* (1999) 20 Cal.4th 163, 180.)

“Historically, the UCL authorized any person acting for the interests of the general public to sue for relief notwithstanding any lack of injury or damages.” (*Durell v. Sharp Healthcare* (2010) 183 Cal.App.4th 1350, 1359.) In 2004, Proposition 64 amended the UCL such that a “private person has standing to bring a UCL action only if he or she ‘has suffered injury in fact and has lost money or property as a result of the unfair competition.’” (*Ibid.*) “A private plaintiff must make a twofold showing: he or she must demonstrate injury in fact *and* a loss of money or property caused by unfair competition.” (*Ibid.*)

“Proposition 64 should be read in light of its apparent purposes, i.e., to eliminate standing for those who have not engaged in any business dealings with would-be defendants and thereby strip such unaffected parties of the ability to file “shakedown lawsuits,” while preserving for actual victims of deception and other acts of unfair competition the ability to sue and enjoin such practices.” (*Kwikset Corp. v. Superior Court* (2011) 51 Cal.4th 310, 316.)

“To satisfy the narrower standing requirements imposed by Proposition 64, a party must now (1) establish a loss or deprivation of money or property sufficient to qualify as injury in fact, i.e., *economic injury*, and (2) show that that economic injury was the result of, i.e., *caused by*, the unfair business practice or false advertising that is the gravamen of the claim.” (*Id.* at 321-22.) Defendant argues that the FAC fails to allege either element.

The FAC alleges that “Plaintiffs have experienced overwhelming loss, pain, suffering, and deprivation of the comfort, support and society of their son Christopher.” (¶ 15, 20.) Defendants contend these alleged injuries are not ‘money or property’ and therefore do not give Plaintiffs standing for a UCL claim.

The Court agrees that there are no allegations supporting an economic injury related to this cause of action. Plaintiffs do not assert that they lost any money or property. While the loss of their son is tragic, it is not the type of injury that is addressed by the unfair competition law.

Even if the loss of their son could be considered an ‘economic injury,’ there are no allegations that show that the loss of their son was *caused by* the unfair business practice. Plaintiffs allege that BJ’s official policy of prohibiting alcohol consumption at work was deceptive in the context of BJ’s unofficial policy of permitting binge drinking immediately after employee shifts. There are no allegations that Plaintiffs were aware of either the public policy or the unofficial policy. In fact, there are no allegations that Plaintiffs had any interaction with BJ’s at all. There are no allegations that they ever visited BJ’s or saw any advertisements related to BJ’s. As such, there are no allegations connecting the alleged ‘misleading’ and ‘deceptive’ policies and Plaintiffs.

Plaintiffs do not address Defendant’s arguments in their opposition. It is accepted that the failure to challenge a contention in a brief results in the concession of that argument. (*DuPont Merck Pharmaceutical Co. v. Superior Court* (2000) 78 Cal.App.4th 562, 566 [“By failing to argue the contrary, plaintiffs concede this issue”]; *Westside Center Associates v. Safeway Stores 23, Inc.* (1996) 42 Cal.App.4th 507, 529 [“failure to address the threshold question ... effectively concedes that issue and renders its remaining arguments moot”]; *Glendale Redevelopment Agency v. Parks* (1993) 18 Cal.App.4th 1409, 1424 [issue is impliedly conceded by failing to address it].) By failing to oppose these arguments, Plaintiffs concede the points.

Instead, Plaintiffs argue that *Cal. Med. Ass’n v. Aetna Health of Cal. Inc.* (2023) 532 P.3d 250 [14 Cal.5th 1075] supports their claim. They contend that *Cal. Med.* held that a plaintiff “possess standing as a result of diverting its own resources to combat unfair competitive practices.” (Opp. at 7:8-10.) They claim that this “holding is consistent with 17204 which requires only an injury in fact involving the loss of money or property as a result of the unfair competition,” and the FAC alleges that Plaintiffs have lost the ‘support’ of their son. (*Id.* at 7:10-15.) Plaintiffs fail to provide a pin cite as to where in the opinion this finding can be found, nor do they discuss how the case applies to the current situation.

Cal. Med. is distinguishable. There, the Court found that “the UCL’s standing requirements are satisfied when an organization, in furtherance of a bona fide, preexisting mission, incurs costs to respond to perceived unfair competition that threatens that mission, so long as those expenditures are independent of costs incurred in UCL litigation or preparations for such litigation.” (*Id.* at 1082.) There, when the CMA implemented a new policy, Aetna diverted resources in response to the policy. In other words, it spent additional money it would not have needed to in order to contend with the new policy.

Plaintiffs present no allegations that they spent any money as a result of BJ’s supposed ‘unofficial policy.’ As noted above, there are no allegations that Plaintiffs were even aware of the policy. As

such, there is no way for them to contend they were financially impacted by it. If they are claiming that their injury is the money spent on litigation related to the accident, *Cal. Med.* disavows this argument, noting that an “organization cannot, of course, manufacture the injury necessary to maintain a suit from its expenditure of resources on that very suit.” (*Id.* at 1099.) Instead, standing must arise “independent of costs incurred in UCL litigation or preparations for such litigation.” (*Id.* at 1082.)

Based on the above, the FAC fails to show that Plaintiffs have standing to bring a UCL claim and as such, Defendant’s demurrer to the third cause of action is **sustained**.

Leave to Amend

“[T]he burden is on the plaintiff to show in what manner he or she can amend the complaint, and how that amendment will change the legal effect of the pleading.” (*Medina v. Safe-Guard Products, Internat., Inc.* (2008) 164 Cal.App.4th 105, 112 fn. 8.) (citation omitted.)

As with the last demurrer by Universal, Plaintiffs obliquely request leave to amend but fail to make any effort to show how they can amend to properly state a cause of action. A trial court does not abuse its discretion in denying leave to amend when the moving party “merely stated in its opposition to [the] demurrer that ‘if the Court finds the operative complaint deficient, Plaintiff respectfully requests leave to amend....’” (*Major Clients Agency v. Diemer* (1998) 67 Cal.App.4th 1116, 1133.)

However, if “the plaintiff has not had an opportunity to amend the complaint in response to a demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.” (*City of Stockton v. Superior Court* (2007) 42 Cal.4th 730, 747.) The face of the FAC does not show that the respondeat superior and negligent hiring causes of action cannot be amended to properly state a claim.

Leave to amend, however, “should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law.” (*Jenkins v. JPMorgan Chase Bank, N.A.* (2013) 216 Cal.App.4th 497, 535 quoting *Lawrence v. Bank of Am.* (1985) 163 Cal.App.3d 431, 436 multiple citations omitted.) Such is the case with the unfair competition cause of action. The Court does not see how, and Plaintiffs have failed to make any showing that, they can properly state such a cause of action.

As this is the first challenge by BJ’s to the Plaintiffs’ allegations, the Court will grant Plaintiffs leave to amend as to the respondeat superior (first) and negligent hiring/supervision (second) causes of action. Leave to amend is denied as to the unfair competition (B&P § 17200 et seq.) cause of action.

Conclusion

Based on the above, Defendant’s demurrer is **sustained**. Plaintiffs are **granted leave to amend** as to the respondeat superior (first) and negligent hiring/supervision (second) causes of action. Leave to amend is **denied** as to the unfair competition (B&P § 17200 et seq.) cause of action.